

Record Keeping

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Application and Definitions

1.1

Unless otherwise stated, this Part applies to a _CRR firm_ , and a _CRR consolidation entity_ :

1. (1) with respect to the carrying on of the following from an establishment in the _UK_ :

1. (a) _regulated activities_ ;

2. (b) activities that constitute _dealing in investments as principal_ , disregarding the exclusion in article 15 of _Regulated Activities Order_ ;

3. (c) _ancillary activities_ ;

4. (d) in relation to _MiFID business_ , _ancillary services_ ; and

5. (e) _unregulated activities_ in a _prudential context_ ; and

2. unless another applicable rule which is relevant to the activity has a wider territorial scope, in which case this Part applies with that wider scope in relation to the activity described in that rule

3. (2) [deleted.]

4. (3) in a _prudential context_ with respect to activities wherever they are carried on; and

5. (4) taking into account any activity of other members of a _group_ of which the _firm_ is a member.

1.1A

This Part does not apply to a _firm_ with respect to the carrying on of _benchmarking activities_ except to the extent that they transpose an _EU instrument_.

1.1B

1. (1) A _firm_ must comply with this Part on an individual basis.

2. (2) A _CRR consolidation entity_ must arrange for orderly records to be kept relating to the _consolidated situation_ of the _group_ , and for this purpose, references to a _firm_ in this Part (other than in 1.1 and 1.1B) mean a _CRR consolidation entity_.

* Future version of 1.1B after 01/01/2027

1.2

In this Part, the following definitions shall apply:

organisational records

means the records set out in Table 1 of 2.5.

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2.1

A _firm_ must arrange for orderly records to be kept of its business and internal organisation, including all services, activities and transactions undertaken by it, which must be sufficient to enable the _PRA_ to:

1. (1) fulfil its supervisory tasks and perform the enforcement actions under the _regulatory system_ ; and
2. (2) in particular ascertain that the _firm_ has complied with all obligations.

[Note: Art. 16(6) of _MiFID II_]

2.1A

[Deleted]

2.1B

[Deleted]

2.2

A _firm_ must retain all records kept by it under this Part in relation to its _MiFID business_ for a period of at least five years.

2.3

[Deleted.]

2.4

A firm must retain the records kept by it under this Part in a medium that allows the information to be stored in a way which is accessible for future reference by the PRA, and in such a form and manner that the following conditions are met:

1. (1) the PRA is able upon request to access the records readily and to reconstitute each key stage of the processing of each transaction;
2. (2) it is possible for any corrections or other amendments, and the contents of the records prior to such corrections or amendments, to be easily ascertained;
3. (3) it is not possible for the records otherwise to be manipulated or altered;
4. (4) it allows the use of information technology, or any other efficient exploitation, when the analysis of the data cannot be easily carried out due to the volume and the nature of the data; and
5. (5) the firm's arrangements comply with the record keeping requirements in this Part irrespective of the technology used.

2.5

A firm must keep at least the organisational records as appropriate to the nature of its activities. The list of organisational records is without prejudice to any other record-keeping obligations arising from the regulatory system.

Table 1: Organisational Records

Description | Content

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The firm's business and internal organisation | Records as provided for under 2.1(3)(d) of the General Organisational Requirements Part.

Compliance Reports | Each compliance report to the senior management under 2.1B(3) of the Compliance and Internal Audit Part and 4.7 of the General Organisational Requirements Part.

Risk management reports

| Each risk management report to senior management under 4.7 of the General Organisational Requirements Part.

Internal audit reports | Each internal audit report to senior management under 4.7 of the General Organisational Requirements Part.

2.6

A firm must keep written records of any policies and procedures which it is required to maintain pursuant to the requirements of the regulatory system relating to its MiFID business.